



DECISION

Complaint No. : POS/4489/KE/234/2022

Name and Address of the Complainant : Syed Muhammad Abbas Jafarey, R/o. A-5, Block-I, Gulistan-e-Johar, Karachi.

Name of the Agency Complained against : Karachi Development Authority (KDA)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :-

ALLEGED DELAY IN APPOINTMENT OF THE COMPLAINANT AGAINST DECEASED QUOTA IN PLACE OF HIS MOTHER WHO WAS APPOINTED AFTER DEATH OF HER HUSBAND AND SHE ALSO DIED DURING SERVICE.

THE COMPLAINT

The complainant, Syed Muhammad Abbas Jafarey, in his complaint dated 18.08.2022 submitted that his father, an employee of the Karachi Development Authority (KDA), had passed away during service, after which his mother was appointed against the deceased quota. Subsequently, his mother also passed away while in service. The complainant stated that despite his application for appointment against the deceased quota, his case was not being processed by KDA and sought intervention of the Honorable Provincial Ombudsman Sindh for redressal.

PROCEEDINGS

2. After admission of the complaint by condoning the delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and after receiving the mandatory Affidavit on Form "A" along with other relevant documents, the matter was taken up with KDA. In response Mr. Salman, Law Officer from KDA, appeared before the Investigation Officer. He informed that the case of the complainant was under consideration; however, the complainant was underage (17 years old) at the time of filing the complaint. It was further stated that his appointment case could only be processed once he attains adulthood, i.e., 18 years of age. The complainant did not appear in person during the hearing.

FINDINGS

3. The Record shows that the complainant is the son of deceased employee who had served the KDA and that the case for appointment against the deceased quota was acknowledged by the concerned department at that time, but such employment could not be granted to him being minor.

Contd....

(2)

4. However, during the process of investigations, the Government of Sindh issued circular No. DQ.1(12)/2024/220 dated 26.12.2024 that all the pending deceased quota cases pertaining to all departments of Government of Sindh and their attached offices, whether lying in the initial stage in the department or even approved by the Scrutiny Committee under the Chairmanship of the Chief Secretary Sindh, and/or subsequently pending in the departmental recruitment committees/departmental selection committees, wherein appointments orders were not issued for any reason whatsoever, before the issuance of the Supreme Court Judgment on 26.09.2024, shall now be deemed to be null and void.

DECISION

5. In view of the above, the complaint is rejected and file cosigned to record.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 12.12.2025